

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	26-06-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	26-06-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Indian Oil Corporation Limited
संगठन का नाम/Organisation Name	Indian Oil Corporation Limited
कार्यालय का नाम/Office Name	locI- Guwahati Refinery
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	senguptap6@indianoil.in
कुल मात्रा/Total Quantity	30
वस्तु श्रेणी /Item Category	ACB_ 800A , ACB_ 1600A , ACB_ 3200A , RETROFIT KIT_ 800A , RETROFIT KIT_ 1600A , RETROFIT KIT_ 3200A
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	RETROFIT KIT_3200A
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	LED Tube Light (Retrofit Type), File/Folder (V3), Retrofit Kit Hub Drive System for Tricycles (ALIMCO), CNC Plasma Cutting Machine, Biochemistry Reagent Kit for Human Samples, Rapid Test Kit for HIV / Syphilis / Hepatitis B Virus (HBV) / Hepatitis C Virus (HCV), Retaining Compound, Facial Kit, Moulded Case Circuit Breakers (MCCB) Conforming To IS/IEC 60947 (Part 2), Nucleic Acid Extraction Kit (For Research Use Only)
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Air Circuit Breaker Conforming To IS/IEC 60947 (Part 2)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Certificate (Requested in ATC),Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	ACB_ 800A
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	7 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	ICICI
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	20

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

DGM Mat

IOCL- Guwahati Refinery, INDIAN OIL CORPORATION LIMITED, INDIAN OIL Corporation Limited, Ministry of Petroleum and Natural Gas
(Dgm Mat)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	Ministry of Petroleum and Natural Gas
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	Deputy Secretary to the Government of India, Ministry of Petroleum and Natural Gas
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	Ministry of Petroleum and Natural Gas
सीए अनुमोदन संख्या/CA Approval Number	FP-20013/2/2017-FP-PNG-Part(4) (E-41432)
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	26-04-2022
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	The Purchase Preference (linked with Local Content) policy of MoPNG is Not applicable for the subject case as per guidelines received from RHQ.

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15

सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100
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ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

ACB_ 800A (10 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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उपरोक्त मद के लिए इंस्टॉलेशन कमीशनिंग एंड टेस्टिंग (आईसीटी) का विवरण / Installation Commissioning and Testing (ICT) details for the above item:

% of Product Cost Payable on Product Delivery	90%
Min Cost Allocation for ICT as a % of product cost	10%
Number of days allowed for ICT after site readiness communication to seller	90 Days

परिषेती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jayanta Kalita	781020,GUWAHATI REFINERY,NOONMATI,GUWAHA TI	10	90

ACB_ 1600A (2 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

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Min Cost Allocation for ICT as a % of product cost	10%
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jayanta Kalita	781020,GUWAHATI REFINERY,NOONMATI,GUWAHA TI	2	90

ACB_ 3200A (3 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

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% of Product Cost Payable on Product Delivery	90%
Min Cost Allocation for ICT as a % of product cost	10%
Number of days allowed for ICT after site readiness communication to seller	90 Days

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jayanta Kalita	781020,GUWAHATI REFINERY,NOONMATI,GUWAHA TI	3	90

RETROFIT KIT_ 800A (10 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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**उपरोक्त मद के लिए इंस्टॉलेशन कमीशनिंग एंड टेस्टिंग (आईसीटी) का विवरण / Installation Commissioning and Testing (ICT)
details for the above item:**

% of Product Cost Payable on Product Delivery	90%
Min Cost Allocation for ICT as a % of product cost	10%
Number of days allowed for ICT after site readiness communication to seller	90 Days

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jayanta Kalita	781020,GUWAHATI REFINERY,NOONMATI,GUWAHA TI	10	90

RETROFIT KIT_ 1600A (2 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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उपरोक्त मद के लिए इंस्टॉलेशन कमीशनिंग एंड टेस्टिंग (आईसीटी) का विवरण / Installation Commissioning and Testing (ICT) details for the above item:

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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jayanta Kalita	781020,GUWAHATI REFINERY,NOONMATI,GUWAHATI	2	90

RETROFIT KIT_ 3200A (3 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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उपरोक्त मद के लिए इंस्टॉलेशन कमीशनिंग एंड टेस्टिंग (आईसीटी) का विवरण / Installation Commissioning and Testing (ICT) details for the above item:

% of Product Cost Payable on Product Delivery	90%
Min Cost Allocation for ICT as a % of product cost	10%
Number of days allowed for ICT after site readiness communication to seller	90 Days

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Jayanta Kalita	781020,GUWAHATI REFINERY,NOONMATI,GUWAHA TI	3	90

Buyer added Bid Specific Additional Scope of Work

क्र.सं./S.N o.	Document Title	Description	रिवर्स प्रभार के अनुसार जीएसटी/Applicable i.r.o. Items
1	Commercial Annexures View	Bidder to mandatorily submit dulated filled, signed and stamped of copy of enclosed each declaration in prescribed format.	ACB_ 800A(10),ACB_ 1600A(2),ACB_ 3200A(3),RETROFIT KIT_ 800A(10),RETROFIT KIT_ 1600A(2),RETROFIT KIT_ 3200A(3)
2	LEGALLY VETTED INSURANCE SURETY BOND IN LIEU OF PBG AND PRICE ADJUSTMENT View	LEGALLY VETTED INSURANCE SURETY BOND IN LIEU OF PBG AND PRICE ADJUSTMENT	ACB_ 800A(10),ACB_ 1600A(2),ACB_ 3200A(3),RETROFIT KIT_ 800A(10),RETROFIT KIT_ 1600A(2),RETROFIT KIT_ 3200A(3)
3	QAP View	QAP	ACB_ 800A(10),ACB_ 1600A(2),ACB_ 3200A(3),RETROFIT KIT_ 800A(10),RETROFIT KIT_ 1600A(2),RETROFIT KIT_ 3200A(3)
4	Jaws orientation View	Jaws orientation	ACB_ 800A(10),ACB_ 1600A(2),ACB_ 3200A(3),RETROFIT KIT_ 800A(10),RETROFIT KIT_ 1600A(2),RETROFIT KIT_ 3200A(3)

The uploaded document only contains Buyer specific Additional Scope of Work and / or Drawings for the bid items added with due approval of Buyer's competent authority. Buyer has certified that these additional scope and drawings are generalized and would not lead to any restrictive bidding.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the

original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing and Commissioning of Goods

3. **Inspection**

THIRD PARTY INSPECTION for IOCL:

Goods and Services shall be subjected to stage wise and final inspection by any of the IOCL approved Third Party Inspection (TPI) agency

As per enclosed list

, and TPI charges are included in quoted prices, and no additional charges shall be paid by Owner.

It will be bidder's responsibility to arrange for third party inspection and submit the third party inspection release note on time. No time extension shall be allowed by IOCL for any delay/lapse in this regard.

Quoted prices are:

- i. i) Inclusive of charges for all facilities required for testing and all inspection requirements specified in the technical specifications and documents enclosed with the TENDER inclusive of destructive testing charges (if any), all expenses like travel, incidental and fees payable to third party inspectors.
- ii. ii) Inclusive of all IBR/IGC/NACE/Radiography charges as per IOCL's technical specifications and the documents enclosed with the TENDER.
- iii. iii) All built in import content (if applicable) shall also be subjected to inspection by any of IOCL approved TPI agency, in the country of origin of the import content, and charges for the same are included in quoted prices, and no additional charges shall be paid by Owner.

[Click here to view the file](#)

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

The schedule wise item description/ name in custom catalogue uploaded by seller in their offer should be same/ similar/ in-line with the name uploaded by buyer in the corresponding IOCL GeM bid catalogue. Non-compliance of the above shall make their offer liable for rejection without any further evaluation or queries. Bidders to take note of same and quote correctly.

Packing should be sea-worthy. Packing shall be done in such a way that materials do not get damaged during loading , transportation , unloading and unboxing.

Note: Non-submission of Bid security declaration in prescribed format and on company's letter will lead to rejection of offer.

1) Commercial Pre-Qualification Criteria:

Commercial Experience Criteria for Goods:

For experience, the order(s) executed by the bidder, during the last five years ending on the last day of the month immediately preceding the month in which the last date of bid submission falls, should be considered as under:

Three orders each executed for “similar item” **Supply of LT Air Circuit Breakers** where executed value is not less than the amount equal to Rs. 22,13,163

OR

Two orders each executed for “similar item” **Supply of LT Air Circuit Breakers** where executed value is not less than the amount equal to Rs. 29,50,884

OR

One order executed for “similar item” **Supply of LT Air Circuit Breakers** where executed value is not less than the amount equal to Rs. 36,88,605 .

FOR- Destination price (inclusive of all tax and duties) shall be considered for arriving at executed value. Last date of order execution may fall in the above mentioned period i.e. within last five years ending on the last day of the month immediately preceding the month in which the last date of bid submission falls without considering any extensions.

Foreign Orders in currency other than USD shall be converted to USD on the date of the said Purchase Order.

Notes on Pre-Qualification Criteria:

Acceptance of PQ Documents of related /unrelated parties shall be as follows:

SN	Scenario	Financial credentials	Techno-commercial Experience Criteria
1	A New Entity formed as a result of merger of two entities and the earlier entity ceases to exist	New Entity can use previous financial credentials of any of the merged companies or of its own.	New Entity can use previous experience of any of the merged companies or of its own.
2	(i) An entity (A) takes over another entity (B) and B ceases to exist	(i) Bidder can use previous financial credentials of company taken over by bidder or of its own.	(i) Bidder can use previous experience of company taken over by bidder.

	(ii) An entity (A) takes over another entity (B) partially and the said part of entity (B) vertical specific business vertical of B ceases to exist.	(ii) Bidder cannot use previous financial credentials of specific business vertical of company taken over by bidder.	(ii) Bidder can use previous experience of the business vertical which has been taken over by bidder (not entire experience of entity B).
3	Parent company (bidder) using the credentials of its subsidiary	Financial credentials of the bidding entity	Parent company can use the credentials of its subsidiaries. In such case, additional surety to be taken from parent and subsidiary for joint and several responsibility.
4	Indian subsidiary (bidder) using the credentials of its Foreign Principals	Financial credentials of the bidding entity. In case the bidding entity's Audited Balance Sheet (BS) is not yet made, BS of the Parent Company shall be acceptable.	Credentials of the Foreign Principals can be used. However, the foreign principal shall be required to furnish a legally enforceable undertaking that they shall be jointly and severally liable, along with the bidder, for the successful execution of the order, if awarded.
5	Demerger of an entity B from another entity A by virtue of Corporate re-structuring exercise	Demerged entity can use the credentials of original/ parent entity (based on the merit and circumstances of the cases like type of procurement, nature of de-merger, number of eligible bidders available etc) to satisfy the eligibility criteria in the tender for 5 years from the date of incorporation of the new entity. Government regulations, if any, may be followed.	Demerged entity can use the credentials of original/ parent entity to the extent of demerger scheme as approved by the competent authority and subject to verification (based on the merit and circumstances of the cases like type of procurement, nature of de-merger, number of eligible bidders available etc) to satisfy the eligibility criteria in the tender for 5 years from the date of incorporation of the new entity. (However, same experience cannot be used by the original entity).

6	A new entity formed has taken over all the assets and liabilities of the proprietorship concern or partnership firm wherein one or more of the Directors of the new entity were the proprietor or partners and the erstwhile proprietorship concern/partnership firm has ceased doing business after taking over of the business by the new entity.	The new entity can use the financial credentials of the erstwhile proprietorship concern/partnership firm.	The new entity can use the experience of the erstwhile
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In case a bidder is a group company of another company, either the Turnover / Experience of the bidder or the Turnover / Experience of the group company shall be considered for the purpose of Pre-Qualification criteria, subject to the following :

(a) Either the Holding company or any one of its Subsidiaries or the JV company only can participate in the tender.

(b) The arrangement permitting the Bidder to quote and rely upon the Turnover/ Experience of the Group company shall be through an undertaking from the Group company whose Turnover/ Experience is considered, submitted with the tender. Such undertaking must be specific for this Tender. The arrangement must provide for continuous support from the Group Company whose Turnover/ Experience is considered, covering all aspects till such time this contract (including CAMC if applicable) is completed.

(c) The Bidder as well as Group Company, whose credentials are being claimed, shall submit an irrevocable undertaking stating therein that both of them i.e. the Bidder as well as its Group Company, shall be jointly and severally liable for due performance of the Contract and the acts done / not done by them (either individually or collectively) in pursuance thereof. The undertaking must be submitted by the bidder along with the bid.

d) Credentials of group company(s) currently on holiday list by Indian Oil Corporation or its administrative Ministry shall not be accepted.

(e) Documents as required to establish Group Company (parent / subsidiary / JV) relationship shall be submitted with bid.

(f) Usage of credentials of Group Company shall be restricted to technical, Commercial Experience Criteria, Financial Criteria, capability and commitment criteria.

2) Documents acceptable against Commercial Pre-Qualification Criteria (CPQC):

For fulfilling the commercial experience criteria any one of the following documents of "similar item" may be considered as valid proof for meeting the criteria:

i. Purchase Order along with Invoice(s) {with self-certification that supplies against invoice has been successfully executed}. Uploading the invoice(s) on the e-portal is considered as self certification by the bidder that supplies against the invoices have been successfully executed to the required value.

ii. Purchase Order along with Bank Certificate indicating payment against the PO
iii. Purchase Order along with Execution certificate by client indicating executed order value. In case the execution certificate does not mention the executed value, the bidder shall have to submit other documents as mentioned here indicating executed value.

iv. In case bidder cites any reference of job executed for IOCL and bidder has not / is not able to furnish documentary evidence, the internal records of IOCL shall be considered against proof of fulfillment of commercial or technical experience criteria.

v. In case multiple orders have been placed against a single rate contract and the cumulative order value satisfies the PQC, it may also be considered, subject to submission of other documents as mentioned above. Multiple GeM contracts against one GeM bid on a particular vendor is to be considered as a single PO for PQC evaluation.

vi. In case any other document is submitted by the bidder in support of execution, the same shall be properly checked by the concerned officers before acceptance.

Notwithstanding any other condition / provision in the tender documents, bidders are required to submit complete documents pertaining to Pre-Qualification Criteria (PQC) along-with their offer.

IOCL reserves the right to complete the evaluation, with or without seeking any additional supporting documents / clarifications.

3) Details of documents submitted against Tender "Pre Qualification Criteria"

Sl. No.	Documents submitted to support compliance	Full address of the client and contact person (Name & Details i.e. Mail ID, Mobile No. etc) if applicable
1.		
2.		
3.		
4.		

4) "Submission of authentic documents is the prime responsibility of the bidder. However, IOCL reserves the right to verify the PQC documents submitted by the bidder(s). For the purpose of verification, bidders shall submit complete client details with names, address, phone numbers and e-mail id with the understanding that IOCL may contact the bidder's client to verify the PQC documents. Wherever required, bidders may have to submit notarized / verified copy of PQC documents. Non submission of these documents, if asked for, will lead to rejection of offer. Should IOCL decide to place order pending verification of PQC documents, payment shall be made only after completion of order. If at any stage, the PQC documents are found to be forged / false / fake, suitable action shall be taken, which may include offer rejection, EMD forfeiture (not by way of penalty or liquidated damages but by way of reimbursement of the pre-estimated costs likely to be incurred by the OWNER towards bidding process and in the scrutiny and evaluation of bids), termination of order (wherever applicable) and holiday listing / suspension (in GeM) of the bidder / vendor."

5) Bidders are requested to quote competitive prices considering the fact that price negotiations, if required, to be held with the lowest bidder only.

6) Negotiations will not be conducted with the bidders as a matter of routine. However, IOCL reserves the right to conduct price negotiations.

7) Offers from the following type of bidders shall not be considered :

i) Bidder(s) who are undergoing insolvency resolution process or liquidation or bankruptcy proceeding under Insolvency and Bankruptcy, Code 2016

ii) Bidder(s) whose insolvency resolution process or liquidation or bankruptcy proceeding is initiated under the Code at any stage of evaluation of the bid.

8) After placement of the contract, there may be an unforeseen situation compelling IOCL to cancel the contract. In such a case, a suitable notice has to be sent to the supplier for cancellation of the contract, in whole or in part, for IOCL's convenience.

9) In case of involvement of foreign Vendors, tenders can be submitted either by the Vendor directly or through their Indian Agent / representative on behalf of them, but not both. The Indian Agent / representative should represent only one Vendor and he should not be allowed to quote on behalf of another Vendor for the same tender. Commissions and scope of services to/by the agents should be explicit and transparent in the bids/contracts.

10) Any Addendum / Corrigendum / Bid end date extension in respect of above tender shall be issued against this tender on GeM Portal only and no separate notification shall be issued in the press. Bidders are therefore requested to regularly visit website to keep themselves updated.

11) Tendering can be abandoned without assigning any reason. No compensation shall be paid for the efforts made by the bidder.

12) IOCL reserves the right to accept or prefer any tender or to abort the bidding process without assigning any reason whatsoever.

13) Although normally the lowest responsive bid amongst the bids submitted by bidders and considered by IOCL to be qualified and competent shall be preferred, IOCL reserves the right not to accept the lowest bid if in its opinion this is not in the interest of IOCL.

14) If a bidder withdraws its bid within validity period for any reason, their bid shall not be further evaluated, and suitable penal action taken which may include EMD forfeiture (if any) and / or holiday listing action as per the discretion of IOCL.

15) IOCL reserves the right to reject any deviation to delivery terms not meeting IOCL's requirement after giving one chance to the bidder to accept IOCL's requirement.

16) Cartel formation, bid rigging, collusive bidding are against the basic principle of competitive bidding and defeats the very purpose of open and competitive tendering system. Such practices are severely discouraged. Suitable administrative actions which include but not limited to rejecting the offers, forfeiture of EMD (not by way of penalty or liquidated damages but by way of reimbursement of the pre-estimated costs likely to be incurred by the OWNER towards bidding process and in the scrutiny and evaluation of bids.), holiday listing action as per policy in vogue for breach of integrity pact may be initiated in such cases.

17) **Special condition related to Payment terms**

a) Payment for all the goods and services shall be made within 45 days from the day of acceptance / deemed acceptance.

b) The day of acceptance shall be the day of actual delivery of goods or rendering of services. However, if any objection is made in writing by the buyer within 15 days from the day of the delivery of goods or rendering of services, the day of acceptance shall be the day on which such objection is removed by the vendor. If no objection is made in writing by the buyer within 15 days, day of actual delivery of goods or rendering of services shall be the day of deemed acceptance.

For Goods: 90% payment against receipt & acceptance of material at IOCL site and balance 10% payment after successful completion of installation, testing and commissioning

For Services: 100% payments after successful completion of installation, testing and commissioning

18) Delivery period for supply of material: 90 days from date of GEM PO;

Completion period for installation job: 90 days from date of site handover

19) PBG: Applicable

a. Bank Guarantee is an agreement between Bank and beneficiary (IOCL) and the same is issued directly by the bank in favor of beneficiary. Accordingly, the stamp paper of appropriate value is required to be purchased in the name of the bank issuing the guarantee. In the stamp paper, First Party to the Bank Guarantee should be the Bank issuing the Guarantee and the Second Party should be the Beneficiary i.e. IOCL.

b. **Selection of Bank:**

Ø BGs less than Rs. 2 cr may be accepted from any scheduled bank (including nationalized banks, other scheduled commercial banks, scheduled cooperative banks and scheduled regional rural banks) as appearing in the Second Schedule to the RBI Act 1934.

Ø BG of above Rs. 2 Crore can be accepted if it is issued by an Indian branch of:

i. Any Nationalized / PSU bank appearing in the Second Schedule to the RBI Act, 1934.

Or

ii. Any scheduled bank (other than a Nationalized Bank / PSU bank) having at least desired Credit Rating at the time of acceptance of BG.

c. **Desired credit rating is defined as under:**

a) In case of foreign banks:

1) If the tenor of BG is more than 1 year: credit rating of 'A' of Moody's or equivalent

2) If the tenor of BG is upto 1 year: credit rating of 'P-1' of Moody's or equivalent i.e. highest short term rating.

b) In case of Indian banks:

1) If the tenor of BG is more than 1 year: credit rating of: 'AA' of CRISIL or equivalent.

2) If the tenor of BG is upto 1 year: credit rating of 'P-1' of Moody's or equivalent i.e. highest short term rating

20) PBG requirement shall be relaxed by 50% in case of MSEs owned by SC/ST & Women Entrepreneurs. Bidder to provide a declaration along with their offer in case they are eligible and want to avail this relaxation along with relevant documentary proof. Subject relaxation is applicable for MSE manufacturers of tendered items.

21) TPI: Applicable

Goods and Services shall be subjected to stage wise and final inspection by any of the IOCL approved Third Party Inspection TPI) agency, and TPI charges are included in quoted prices, and no additional charges shall be paid by Owner.

It will be bidder's responsibility to arrange for third party inspection and submit the third party inspection release note on time. No time extension shall be allowed by IOCL for any delay/ lapse in this regard.

Quoted prices are:

- i) Inclusive of charges for all facilities required for testing and all inspection requirements specified in the technical specifications and documents enclosed with the TENDER inclusive of destructive testing charges (if any), all expenses like travel, incidental and fees payable to third party inspectors.
- ii) Inclusive of all IBR/IGC/NACE/Radiography charges as per IOCL's technical specifications and the documents enclosed with the TENDER.
- iii) All built in import content (if applicable) shall also be subjected to inspection by any of IOCL approved TPI agency, in the country of origin of the import content, and charges for the same are included in quoted prices, and no additional charges shall be paid by Owner.

Scope of TPI: Bidders must note that pre-dispatch inspection through any IOCL approved Third Party Inspection Agency (TPIA) will be required at their works before dispatch. Further, the supplied materials will have to be duly supported by the Release Notes issued by the TPIA. Bidders must also note that organizing such inspection shall be in their scope. TPI Release Note shall accompany supplied materials. Please note that proper stamping / embossing shall be there to establish traceability of the TPI Release Notes with the supplied materials.

Third party Inspection shall be from any one of the below mentioned IOCL approved agencies only:

1. M/s Apave TIV India Pvt. Ltd.
2. M/s Bureau Veritas (India) Pvt. Ltd
3. M/s Certification Engineers International Limited
4. M/s Edlipse Engineering Global Private Limited
5. M/s LRQA Inspection Services India LLP
6. M/s International Certification Services Pvt. Ltd.
7. M/s Intertek India Pvt. Ltd
8. M/s IR Class Systems and Solutions Private Limited
9. M/s Meenaar Global Consultants LLP
10. M/s Industrial Inspection & Verification Services(India) Pvt Ltd

11. M/s SGS India Private Limited
12. M/s TÜV India Private Limited
13. M/s TUV Rheinland (India) Pvt. Ltd.
14. M/s TUV SUD South Asia Pvt Limited
15. M/s Projects and Development India Limited
16. M/s TQ Cert Services Pvt Ltd

Note:

1. MTC (material Test Certificate) endorsed by Original manufacturer to be checked by TPIA during inspection.
2. Deviations to be elaborated in Inspection visit report. In case there is any deviation during inspection, information to be shared with end user.
3. Externally painted pipe and fittings shall not be inspected by TPIA. TPIA have to insist for removal of paint for material inspection.
4. TPIA should deploy qualified and experienced engineers / inspectors instead of freelancers.
5. IOCL approved QAP is to be adhered of for all material procurement.
6. Validity of the above TPI agencies is till **30.04.2029** or till the satisfactory performance of the agency whichever is earlier.
7. TPI Agencies need to submit, in advance, the details of Inspector (Qualification, Experience) who will be carrying out the Inspection along with items being inspected to concerned refineries Location, preferably 7 days before visiting the vendor site.
8. Provision to be made in the PO so that once the vendor selects a particular TPI, its name is shared with IOCL. In case vendor changes the TPI, the vendor shall share the reason for change of TPI and its name with IOCL again.
9. In case of material dispatch delayed by more than 30 days post final inspection by TPI Agency, it should be recertified by TPI Agency, and expenses will be borne by the vendor.

22) Bidders are requested to submit duly filled, signed and stamped copy of each declarations/undertakings enclosed in additional scope of work/ technical specification document/Buyer uploaded ATC document.

23) Bid security declaration: Applicable

Bidder to note that Earnest Money Deposit (EMD) is not applicable for the subject tender. In lieu of Earnest Money Deposit, Bidders are required to furnish Bid Security Declaration, as per the format enclosed in **additional scope of work/ technical specification document/Buyer uploaded ATC document**. Bid Security Declaration shall be applicable for all Bidders irrespective of their status as MSE / Start-up /any exempted bidder category.

Note: Non-submission of Bid security declaration in prescribed format and on company's letter will lead to rejection of offer.

24) Insurance Surety Bond (ISB) and its operating modality:

In lieu of EMD, Performance Bank Guarantee or PRS/Price reduction for delay, bidders may furnish Insurance Surety Bond (ISB), as per the format enclosed in tender document. Insurance Surety Bond (ISB) shall be applicable for all bidders irrespective of their status as MSE / Start-up /any exempted bidder category.

i) Insurance Surety Bond (ISB) can be issued by the insurer registered under Insurance Regulatory and Development authority (IRDA).

ii) Insurance Surety Bond (ISB) can be accepted against EMD, Security Deposit, Performance Guarantee & PRS / Price reduction for delay only.

iii) Only Indian Bidders can submit the ISB, for Work/supply commitment within India in INR executed on a Non judicial stamp paper. Insurance Surety Bond (ISB) on e-stamp paper may also be accepted in addition to Non-Judicial Stamp Paper. Compliance of State specific stamp act requirement is to be ensured.

iv) The Surety Bond should be irrecoverable, unconditional & without recourse/reference to the bidder. I S B shall be strictly in line with duly approved format.

v) The ISB shall be received directly from the Insurance companies. In certain cases, where the time does not permit or where ISB is required to be submitted along with bids, ISB may be received from Vendors/Contractors.

25) Any bidder (including an Indian bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority.

26) Any clarification (technical/commercial) shall be considered only through representation on GeM portal and not through mail.

27) Arbitration Clause:

"Notwithstanding anything to the contrary contained in Contract, it is agreed that any dispute between the Buyer and Seller shall be resolved through arbitration by a sole arbitrator to be appointed mutually by the Buyer and Seller only if the cumulative value of claims of Buyer and the claims of Seller does not exceed Rs. 10 Crore. It is further agreed that in case the cumulative value of claims of the Buyer (inclusive of interest amount claimed by Buyer till the date of filing of statement of claim or the counter-claim as the case may be) filed before Arbitrator and the claims (inclusive of interest amount claimed by Seller till the date of filing of statement of claim or the counter-claim as the case may be) filed before the Arbitrator exceed Rs. 10 Crore, the Arbitrator so appointed shall refrain from proceeding in the arbitration and the proceedings shall stand terminated forthwith."

28) Where a Foreign bidder, in its offer, assigns part order to an Indian Entity, which is not its subsidiary, the same shall be accepted subject to such Indian entity having executed at least one order (irrespective of value) for the scope that is proposed to be assigned to it.

29) "The Government of India envisioned the Zero Defect Zero Effect (ZED) initiative (Bronze/Silver/Gold level) and the Lean Certification initiative (Basic/Intermediate/Advanced level) to enhance MSME competitiveness, ensure sustainability, and transform them into national and international champions.

For complete details on registration, required documents, benefits, and other related information, visit the links below:

<https://zed.msme.gov.in/>

and the link below.

<https://lean.msme.gov.in/>

Kindly register and take advantage of these GOI initiatives.

30) Government of India has implemented the Trade Receivables Discounting System (TReDS). TReDS is an institutional mechanism set up in order to facilitate the financing of trade receivables of MSMEs from corporate buyers through invoice financing by multiple financiers. IOCL is already registered on the following TReDS Platforms:

1. Receivables Exchange of India Ltd (RXIL)

Website: <https://www.rxil.in/>

Address: Receivables Exchange of India Limited, 701-702, 7th Floor, Supremus, E Wing, I-Think Techno Campus, Kanjurmarg East, Mumbai 400042.

2. M1xchange

Website: <https://www.m1xchange.com/>

Address: Unit No. A/04-01 to A/04-6D and A/04-07, 4th Floor Tower A, Reach Commercial, Sector 68, Gurugram -122101, Haryana

MSME bidders are requested to register on the TReDS platform.

31) Vendor Invoice Management:

Dear Vendors,

Indian Oil has been keeping its systems updated with latest developments and newest technologies to efficiently add to the delight of our partner vendors. Many digitalization steps have been taken in the past and have been successfully implemented with the continuous support of partners.

We are introducing Vendor Invoice Management system for centralized processing of invoices for supply of goods and services with an intent to further expedite the payment process. A centralized query management system including self-help is also being introduced for convenience of the vendors on tracking details related to payments.

A. Invoice Management System

With effect from **17.05.2023**, **original copy of invoice** raised on **this office** against PO shall be submitted in the following manner: -

1. **Digitally signed original invoice** can be submitted by registering into vendor portal (E-Vidit portal) in which case no hard copy is required to be sent. Vendors are encouraged to use vendor portal for expeditious settlement of their invoice.

The link to the vendor portal is

<https://apps.indianoil.in/vim>

Help Manual of portal for use by vendors is attached herewith.

2. **Alternatively**, originally signed invoice in physical form can be sent to the following address: -

Indian Oil Corporation Limited

IBM Tower, 2nd Floor,

A 26, Rani Ramgarh Road,

Block A, Industrial Area,

Sector 62, NOIDA,

Uttar Pradesh.

Only Original Invoice along with supporting invoices for any reimbursement like freight & inspection bills should be sent to the above address. The documents like **Inspection Release Note, Test Certificate, Bank Guarantee** etc. in original should continue to be submitted to the **IOCL, Guwahati refinery**.

To achieve the full benefit of the newly introduced system, you are requested to note the following changes in Invoicing and submission of the same: -

1. Invoice Requirement - Physical

Digitally signed invoice uploaded through Vendor Portal is preferred. (<https://apps.indianoil.in/vim>)

However, where vendor submits the physical copy of the invoice, following points may be ensured: -

- Ø It should not be handwritten invoice.
- Ø It should be in English language only.
- Ø It should not be photocopy.
- Ø It should not be carbon copy.
- Ø It should not be Dot Matrix Print copy.
- Ø Invoice should not be damaged or tampered and should always be preserved in original state.

Ø Writing of comments, remarks etc. on the Invoice may be avoided.

Needless to mention, Invoice must be in the name of Indian Oil Corporation Limited.

2. Invoice Requirement - Content

- Mention PO Number on Invoice where invoice is raised against SAP Order
- Invoice should be in line with Order conditions
- Invoice should comply with applicable GST provisions including HSN/SAC Code
- Ensure that the address in Invoice is correctly mentioned as per Order including Company Code & Plant Code available on Order
- In case where Vendor knows its SAP Vendor Code with Indian Oil, the same should also be captured on the body of Invoice

3. Price Reduction on account of Delay

- Raise invoice after effecting Price Reduction on account of Delay in Invoice, wherever applicable.
- In case where request for time extension has been submitted but not approved by EIC, invoice still should be raised by reduced amount.
- Subsequently, Vendor can issue Debit Note when time extension is granted after raising of invoice.
- This process will eliminate the requirement of credit note for GST accounting and consequential delay in processing payment of the entire amount due to complication of GST input credit.

4. Other Requirements

- Ensure that Bank Guarantee, wherever applicable, has been submitted at **IOCL, Guwahati refinery** as per required format
- Ensure submission of all the documents at **IOCL, Guwahati refinery** in line with conditions of the contract

B. Query Management System

For expeditious resolution of queries from the vendors, Round the clock Self-help tool (BOT), Webform, Dedicated Email and 9 to 5 Helpdesk have been introduced, details of which are as under: -

Email	VIMHelpdesk@indianoil.in
Chatbot	Indian Oil (gupshup.io)
Helpdesk Phone	+91 120 6730555

Note: Digitally signed Invoice is to be uploaded through E-Vidit Portal. Vendor is requested to not send hard copy of invoice when Digital invoice is already submitted successfully on E-Vidit portal, as this may delay the payment process.

32) Documents Required for Vehicle Entry:

Please note, a vehicle carrying the material to IOCL Guwahati Refinery must have the following documents in Original:

1. VALID DRIVING LICENSE IN ORIGINAL
2. VALID ROAD PERMIT IN ORIGINAL
3. VALID RC IN ORIGINAL
4. FITNESS CERTIFICATE IN ORIGINAL
5. VALID INSURANCE IN ORIGINAL
6. FIRE EXTINGUISHER AVAILABLE IN THE VEHICLE
7. VALID POLLUTION CERTIFICATE IN ORIGINAL
8. DRIVER WITH PPE COMPLIANCE (Should wear Safety Shoes)
9. BATTERY OF VEHICLE IS COVERED AND LOCKED
10. ADDITIONAL TYRE/SPARE TYRE IS AVAILABLE IN THE VEHICLE
11. DOCUMENTS OF THE MATERIAL LOADED ON THE VEHICLE / TRUCK
12. PLEASE ENSURE MOBILE, MATCH BOX OR OTHER FLAMMABLE ITEMS ARE NOT ALLOWED.

33) Dealing officers from IOCL:

Mr. Pushandeeep Sengupta, SMT0 (Purchase) - senguptap6@indianoil.in, PH- 0361-259-7265

Alternate:

Mr. A Gogoi, CMTM (Purchase) - GogoiA@indianoil.in, PH- 0361-259-7267

Mr. Praveen Gupta, DGM (Mat) - gupta_praveen@indianoil.in, PH- 0361-259-7251

For Material receipt/ GRN :

Mr. J Kalita, SMTM (Stores) - kalitajayanta@indianoil.in, PH- 0361-259-7259

For Payment:

VIM helpdesk- VIMHelpdesk@indianoil.in, PH- +91 120 6730555

Mr. Abhiranjan Singh, ACO - singha90@indianoil.in , PH- 0361-259-7210

NB: Bidder needs to strictly comply all other terms and conditions mentioned in the technical specification sheet or else your offer may be liable for rejection.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their

Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove;**

and

- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा।/In terms

of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---